LAW OF ARTIFICIAL INTELLIGENCE

Course Syllabus

Course title	Law of Artificial Intelligence
Level	Graduate / elective for final-year LL.B. students
Duration	14 weeks, 3 hours per week (2 hours lecture, 1 hour case workshop)
Credits	3 local credits, 6 ECTS (to be adjusted to the institution's scheme)
Prerequisites	None. General part of criminal law and general private law are recommended
Language	English. Some readings are in Turkish, German and French
Instructor / term	[Instructor name], [Academic year and term]

1. Course Aims

The course examines the legal problems raised by artificial intelligence (AI) systems through positive law and doctrinal categories. Technical exposition is not its centre of gravity; technical knowledge is supplied only to the extent needed to frame a legal question correctly. Three questions run through the term:

1. Is existing law capable of addressing harm caused by AI and conduct that infringes rights, or is new regulation required?
2. When part of a decision is delegated to an algorithm, how do responsibility, fault, causation and proof operate?
3. Where do regulatory approaches to AI (European Union, Council of Europe, United States, China, Türkiye) diverge, and on what legal reasoning does the divergence rest?

The course gives deliberately broad space to criminal law and criminal procedure (Weeks 9-11). The reason is twofold: this is the field in which the state exercises its most intrusive power over rights, and the principle of legality and the principle of culpability are tested most severely by AI.

2. Learning Outcomes

On completion, students will be able to:

1. Explain how machine learning, large language models and automated decision systems work, at the level required for legal assessment.
2. Analyse the risk-based architecture, the chain of obligations and the enforcement regime of the EU Artificial Intelligence Act.
3. Assess the training, deployment and output stages of an AI system separately under data protection, intellectual property and liability law.

4. Discuss critically the question of criminal liability of AI through the categories of perpetrator, culpability, causation, objective attribution and foreseeability.
5. Weigh the evidentiary value of algorithmic output in criminal proceedings in light of exclusionary rules and equality of arms.
6. Produce a written analysis, at the level of a legal opinion or short article, that cites its sources and takes a position.

3. Teaching Method

- **Lectures:** the first two hours each week; analysis of concepts, norms and case law.
- **Case workshop:** the last hour; group work on a hypothetical or real scenario. Scenarios are built around a single variable, and students are expected to locate the boundary line.
- **Reading seminars:** each week students bring one written question and a one-paragraph critique of the assigned reading.
- **Moot court (Week 11):** a hearing in a file containing algorithmic evidence, with students acting as prosecutor, defence counsel, expert and judge.
- **Guest session (optional):** one session with a data scientist or compliance specialist.

4. Assessment

Component	Weight	Date
Participation and reading notes	10%	Throughout
Midterm (case solution, open book)	25%	Week 8
Case analysis or moot court file	20%	Week 11
Term paper (5,000-7,000 words)	45%	Week 14 (topic approval: Week 6)

Term paper. Students choose a narrow legal problem from one of the areas covered and write a study that advances a thesis, engages a counter-position and reaches a conclusion. Purely descriptive surveys are not accepted. A one-page outline with five sources is due in Week 6.

Use of AI tools. Because this is a course on AI law, the use of generative tools is not prohibited, but it is conditional. (i) Use is disclosed at the end of the paper, stating the tool and its purpose. (ii) Every case citation, statutory provision and footnote is verified by the student against the primary source. (iii) Tool output may not replace the student's own reasoning. A paper containing a non-existent decision, source or provision is an academic integrity violation and lowers the grade, even if use was disclosed. The topic returns in Week 13 through the example of the legal profession.

5. Weekly Programme

Week 1. Conceptual framework and technical literacy

What is AI, and why does the legal definition not coincide with the technical one? Rule-based systems, machine learning, deep learning, generative models. The "black box" problem, training data, model weights, inference. A method for locating the stage at which the legal problem arises: design, training, deployment, use.

Workshop: Two systems produce the same output, one rule-based and one learning. How does the liability analysis change?

Week 2. Regulatory approaches and the normative map

Risk-based (EU), sectoral and market-oriented (US) and state-supervised (China) models. The OECD AI Principles, the UNESCO Recommendation on the Ethics of AI, the Council of Europe Framework Convention on Artificial Intelligence. Soft law and binding law. Current legislative work and national strategy documents in Türkiye (current status to be confirmed at the start of term).

Week 3. EU AI Act I: scope, definitions, prohibited practices

Scope of application and extraterritorial effect (consequences for a provider established in Türkiye). The notions of provider, deployer, importer and distributor. Prohibited practices: manipulative techniques, social scoring, real-time remote biometric identification in publicly accessible spaces and its exceptions.

Week 4. EU AI Act II: high-risk systems and general-purpose models

Annexes on high-risk systems, conformity assessment, human oversight, record-keeping, transparency duties. General-purpose AI models and systemic risk. Administrative fines and the supervisory architecture. The phased application timetable.

Week 5. Data protection and AI

Comparison of Turkish Law No. 6698 (KVKK) and the EU General Data Protection Regulation. Legal basis for training data, purpose limitation, data minimisation. The right to object to decisions based solely on automated processing (KVKK Art. 11(1)(g); GDPR Art. 22). Profiling, the right to explanation and the problem of “meaningful information”. The dilemma of erasure and machine unlearning.

Week 6. Intellectual property

Use of works as training data: text and data mining exceptions, and the gap in Turkish Law No. 5846 on Intellectual and Artistic Works. Whether AI output can be a work: “author” and “intellectual effort”. Reproduction through memorisation in model output. Inventorship in patent law.

Term paper outline due this week.

Week 7. Civil liability: contract, tort, product liability

Fault liability and strict liability under the Turkish Code of Obligations and their applicability to AI (liability of the principal for auxiliaries, liability for hazardous activities, auxiliary persons). Defective goods and product liability. The new EU Product Liability Directive and its extension to software and AI; the fate of the proposed AI Liability Directive (current status to be confirmed). Easing of the burden of proof, presumptions of causality.

Week 8. Midterm

Open book, case solution. The scenario concerns the automated rejection of a credit application and combines administrative, civil and data protection dimensions.

Week 9. Criminal law I: AI and the basic categories of criminal responsibility

Can criminal responsibility be attributed to AI? The “electronic personhood” proposal; the incompatibility of act, will and culpability with an artificial agent. The user who employs AI as an instrument (perpetration through another); distribution of

responsibility among programmer, manufacturer, operator and user. Gabriel Hallevy's three models (perpetration-via-another, natural-probable-consequence, direct liability) and their critics. The argument that a machine cannot be punished, viewed from the purposes of punishment.

Central question: Is the personal nature of criminal responsibility (Turkish Penal Code Art. 20) an obstacle that can be overcome for AI, or is it merely the correct statement of the problem?

Week 10. Criminal law II: negligence, causation and offences committed with AI

Negligence in autonomous vehicle accidents: the objective duty of care, the principle of reliance, foreseeability, causation and objective attribution in the face of a black box. The limit of "permitted risk" where a learning system behaves unpredictably. Offences committed with AI: deepfake content and Turkish Penal Code Arts. 134 and 136, fraud through information systems (Art. 158/1-f), cybercrimes (Arts. 243-246), the disinformation provision (Art. 217/A). Offences against AI systems and model theft. Comparative view: automation and responsibility in German and French doctrine.

Week 11. Criminal procedure: evidence, surveillance and algorithms in adjudication

Predictive policing, facial recognition and mass surveillance in relation to the system of Criminal Procedure Code (CMK) Arts. 134-140. Evidentiary value of algorithmic output: expert evidence, verifiability, equality of arms, defence rights and access to source code. Exclusionary rules (CMK Arts. 206/2-a, 217/2) and the problem of "unlawfully obtained training data". AI-assisted judicial decisions: judicial independence, the right to a reasoned decision, the CEPEJ ethical charter. Case law of the European Court of Human Rights on automated measures and mass surveillance.

The moot court takes place this week. The case file is distributed one day earlier.

Week 12. Fundamental rights and discrimination

Algorithmic bias: sources (data, labelling, objective function) and legal characterisation. The principle of equality, indirect discrimination, the case law of the Human Rights and Equality Institution of Türkiye and the Constitutional Court. Freedom of expression and content moderation algorithms. Privacy and biometric data. A right to explainability: does it have a constitutional basis?

Week 13. Governance, compliance and the legal profession

Internal AI governance, risk management, the legal weight of standards such as ISO/IEC 42001 and 23894. Impact assessments. Generative AI in legal practice: confidentiality, duty of care, filings citing non-existent decisions (*Mata v. Avianca*, 2023, is read as a case study) and disciplinary liability. Guidance on AI use issued by courts and bar associations.

Week 14. Concluding session and term paper presentations

Each student presents the thesis, counter-position and conclusion of the term paper in ten minutes. The final session returns to the three questions of the course: what should the law recognise as a new category, and what can it resolve with existing ones?

6. Reading Plan

Readings are given in three layers. Primary texts are distributed together at the start of term; secondary literature is fixed for each week at no more than three works.

Primary texts (legislation and instruments)

- Turkish Penal Code (No. 5237), Criminal Procedure Code (No. 5271), Code of Obligations (No. 6098), Personal Data Protection Law (No. 6698), Law on Intellectual and Artistic Works (No. 5846) (current consolidated texts)
- Regulation (EU) 2024/1689 (Artificial Intelligence Act)
- Regulation (EU) 2016/679 (General Data Protection Regulation)
- Council of Europe Framework Convention on Artificial Intelligence and Human Rights, Democracy and the Rule of Law (2024)
- OECD Recommendation on Artificial Intelligence; UNESCO Recommendation on the Ethics of Artificial Intelligence
- CEPEJ, European Ethical Charter on the Use of Artificial Intelligence in Judicial Systems and their Environment (2018)

Case law. Decisions of the Court of Cassation, the Constitutional Court and the European Court of Human Rights are distributed as a current list compiled at the start of term from Turkish legal databases and HUDOC. This syllabus gives no case citations; citations are added to the list only after they have been read at the source.

Secondary literature. Doctrinal readings (Turkish, German, French and Anglo-American authors) are fixed at the start of term through a library and database search. Bibliographic details will be verified at that stage and are not entered here. Author groups to be searched for Weeks 9 and 10: AI and criminal responsibility (Hallevy and his critics), negligence and objective attribution in autonomous systems (German criminal law doctrine), algorithmic evidence (comparative procedural law).

7. Course Policies

- **Attendance:** 70% attendance is required.
- **Late submission:** 10% grade deduction per day; excused delay requires prior notice.
- **Citation style:** One citation system is used in papers and is agreed with the instructor before the first footnote. The default is the institute’s thesis regulation.
- **Accessibility:** Students with special educational needs notify the instructor in the first week of term.

8. Notes for the Instructor

1. Legislation may change during the term (in particular the AI Act’s application timetable and regulatory work in Türkiye). The content of Weeks 2, 4 and 7 should be updated at the start of term.
2. The Week 11 moot file may be an anonymised version of a real file or entirely fictional. If a real file is used, anonymisation must satisfy data protection law and professional secrecy.
3. Weeks 9-12 can be separated as a four-week “criminal law module” and turned into a stand-alone elective. In that case the first three weeks are common and the rest is built with a criminal law emphasis.